

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case No. 2011-004721

STIPULATION FOR INTERIM CESSATION OF PRACTICE

IN THE MATTER OF EDWIN A. SHOCKNEY, LICENSED PROFESSIONAL COUNSELOR,
LICENSE NUMBER 3070

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners (the "Board") and Edwin A. Shockney, Licensed Professional Counselor ("Shockney" or "Respondent") as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation for Interim Cessation of Practice ("Stipulation").
2. Respondent was licensed to practice as a Licensed Professional Counselor in the State of Colorado at all times relevant herein.
3. On Friday, July 22, 2011, the Board reviewed case number 2011-004721 and subsequently concluded that, based upon the information before it, that it would refer this matter to the Office of Investigations for further review to determine if the Respondent has violated the Mental Health Practice Act, § 12-43-101 *et seq.*, C.R.S. (the "Act"). The Board has also ordered the Respondent to schedule a neuropsychological/mental status examination within thirty days of August 5, 2011.
4. The parties have agreed to stay the required mental status evaluation, and instead have agreed to enter into this Stipulation, pursuant to which the evaluation is stayed during the pendency of the Board's investigation of the Respondent.
5. Respondent agrees that he will not engage in the practice of "professional counseling" as defined in § 12-43-602, C.R.S., and /or "psychotherapy" as defined in 12-43-201(9), C.R.S., while this Stipulation is in effect.
6. This stipulation shall remain in effect until such time as the Board has completed, reviewed and rendered a decision relating to its investigation in case number 2011-004721
7. The Board agrees that it will not require a mental status evaluation while this Stipulation is in effect as long as Respondent remains in compliance with this Stipulation and as long as the Board does not learn of substantially new information that would warrant action.
8. Nothing in this Stipulation shall constitute disciplinary action or a finding that Respondent has engaged in practice in violation of the Act. The Board has made no final determinations regarding Respondent's professional competency, fitness to practice or professional conduct. This Stipulation shall constitute a public record, but is not reportable to the National Practitioner Databank or the Healthcare Integrity Protection Databank.

9. Nothing in this Stipulation shall preclude the Board from initiating disciplinary action in this case or on any other disciplinary matter, other than case number 2011-004721 that comes before the Board pursuant to the Act, or from issuing a Final Agency Order on a case other than Case number 2011-004721, even while this Stipulation is in effect.

10. The terms of this Stipulation have been mutually negotiated and determined.

11. Both parties acknowledge that they are entering into this Stipulation voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Stipulation.

12. This Stipulation and all of its terms, conditions and statements constitute a valid Board Order for the purposes of § 12-43-222(1)(b), C.R.S.

13. Respondent acknowledges and agrees that any violation of this Stipulation shall constitute a violation of a lawful Board Order and may be grounds for further proceedings pursuant to the Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Stipulation, and this Stipulation shall remain operative and in full force and effect.

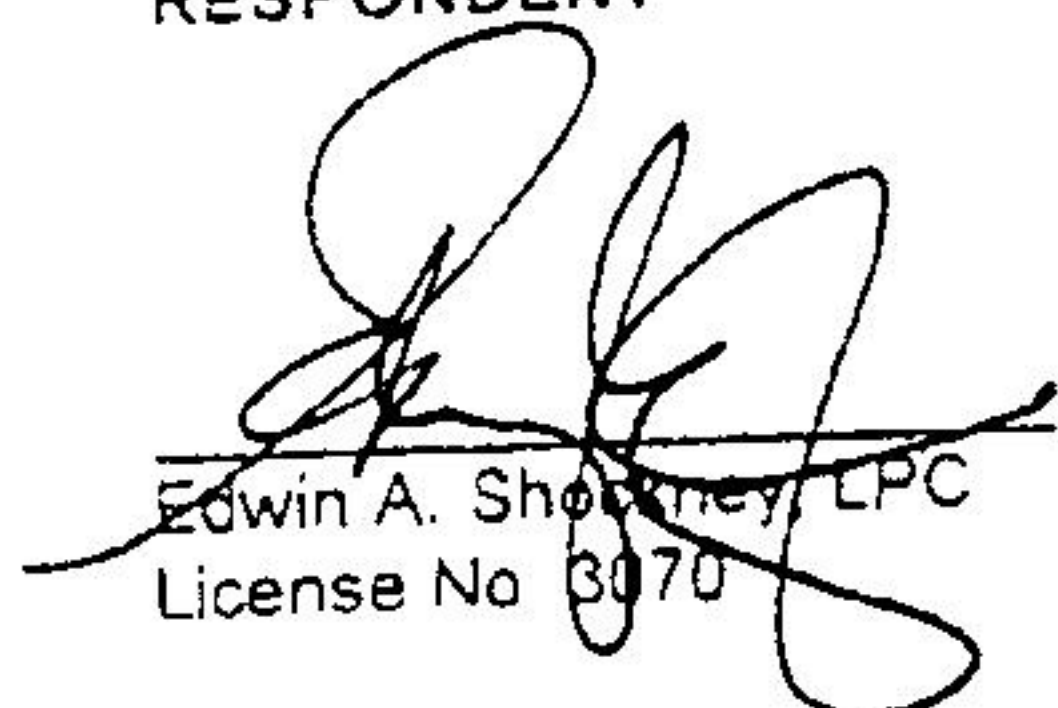
14. This Stipulation constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Stipulation is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Stipulation shall be given full force and effect.

15. This Stipulation shall become effective when accepted and signed on behalf of the Board.

16. This Stipulation shall be admissible as evidence at any hearing held before the Board.

17. This Stipulation shall constitute a public record in the custody of the Board.

RESPONDENT


Edwin A. Shockey, LPC
License No. 3070

Dated: Sept. 8, 2011

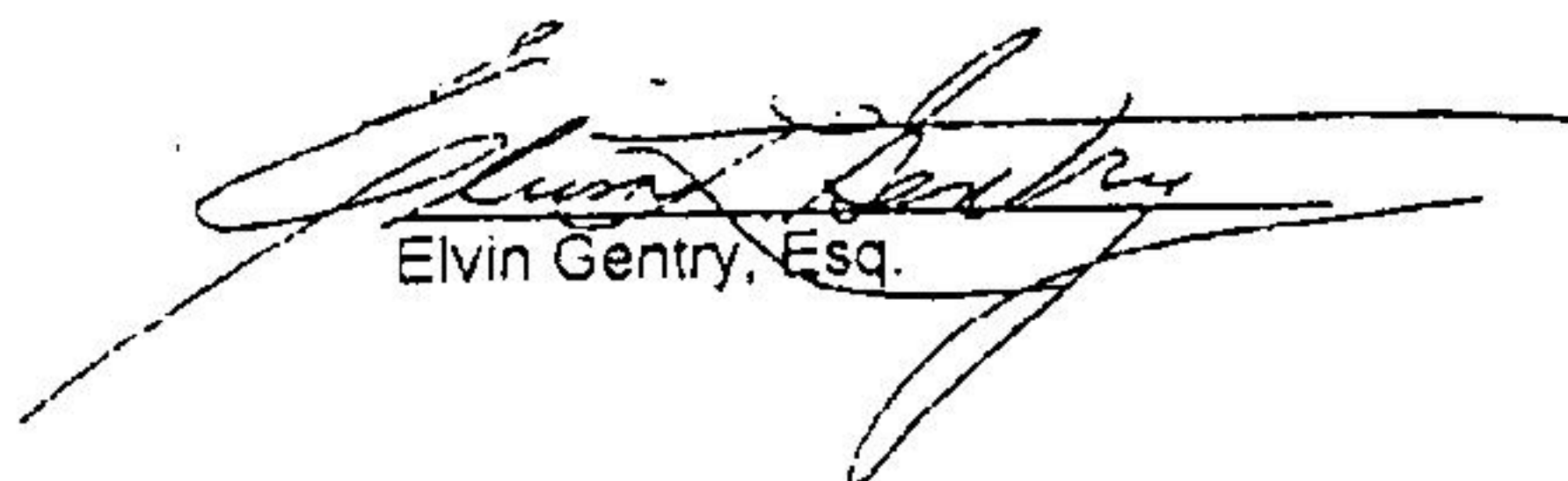
COLORADO STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS


Ronne Hines
Program Director

Effective Date: This 12th day of
September 2011.

APPROVED AS TO FORM:

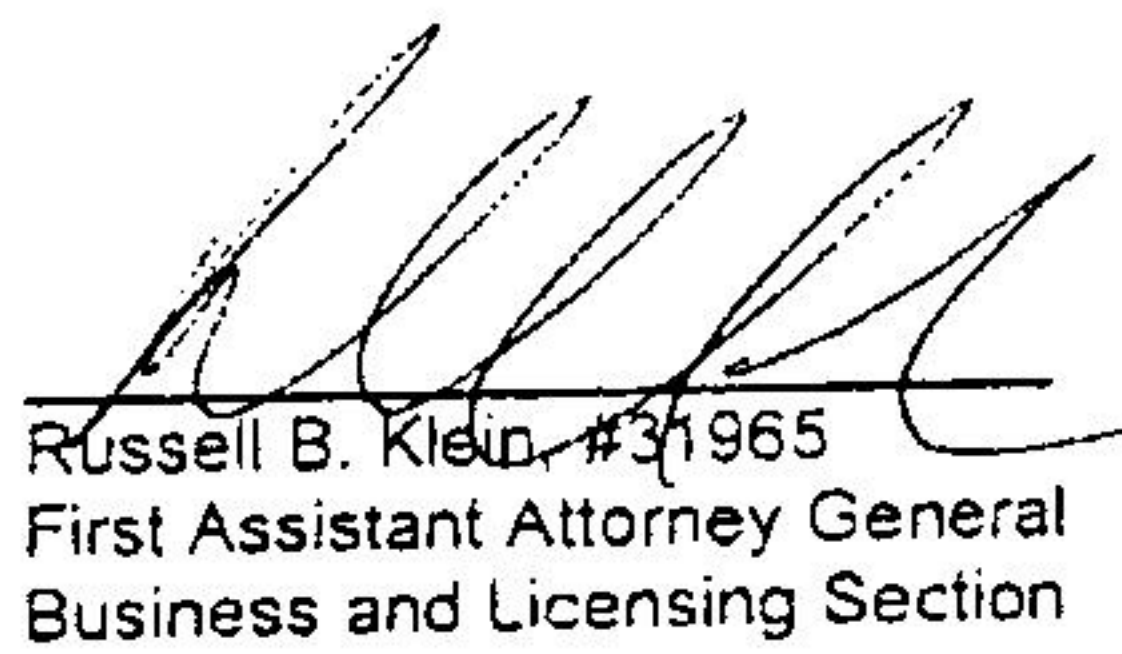
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Attorney for Respondent
Edwin A. Shockney, LPC

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